

Person Filing:_____

Address (if not protected):_____

City, State, Zip Code:_____

Telephone:_____

Email Address:_____

ATLAS Number:_____

Lawyer's Bar Number:_____

Representing ☐ Self, without a Lawyer OR ☐ Attorney for ☐ Petitioner OR ☐ Respondent

For Clerk's Use Only

SUPERIOR COURT OF ARIZONA
IN MARICOPA COUNTY

Petitioner / Party A

Case No: _____

MOTION TO SERVE BY
☐ ALTERNATIVE SERVICE
☐ PUBLICATION

Respondent / Party B

Pursuant to Arizona Rules of Family Law Procedure (ARFLP) 41 (l) and (m),

☐ Party A ☐ Party B respectfully requests this Court to authorize service to the opposing Party by means other than service required by ARFLP Rules 41 (c) through (k) because of the reasons set forth below, in the incorporated Affidavit. Pursuant to ARFLP and to the reasons set forth in the Affidavit below, the above Party requests service by the method of service described in this Motion.

AFFIDAVIT

of Due Diligence at Attempted Service of _____
(Name of other Party)

1. The following is a summary of the efforts I made to find the other Party's current address:

☐ Yes ☐ No: I mailed a copy of the documents to be served to the Party's last known address, even if it was my own address, to see whether the documents would be returned marked "undeliverable."

☐ Yes ☐ No: The documents were returned "undeliverable," and I attached the envelope that states "undeliverable" to this affidavit.

☐ Yes ☐ No: I talked to the party's friends, family members, current or former employers, coworkers, and anyone else I thought may have a current address.

☐ Yes ☐ No: I searched telephone directories, and obituaries online and in print (phone book and newspaper) and did not find a current address.

☐ Yes ☐ No: I checked the websites of and telephoned the county jail, state prisons, and other facilities (Department of Corrections, Immigration and Detention Facilities), and did not find the other Party detained.

☐ Yes ☐ No: I hired a private detective or a company that charged a fee to do computer searches to help me track down the other Party.

☐ Yes ☐ No: I did an online search, checking online networking sites such as Facebook and LinkedIn, as well as internet people search sites such as Spokeo.com and ZabaSearch.com, and did not find the other Party.

☐ Yes ☐ No: I know the other party's email address.

If yes, their email is: _____

Most recent date other Party emailed me from this address: _____

☐ Yes ☐ No: I attempted to email scanned copies of all the documents to the other Party's email address; but I did not receive a reply.

☐ Yes ☐ No: I know the other party's mobile phone number.

If yes, their mobile phone number is: _____

Most recent date other Party contacted me from this number: _____

☐ Yes ☐ No: I tried to contact the other Party at this phone number; but I did not receive a reply.

☐ Yes ☐ No: I identified one or more social media accounts belonging to the other Party.

If yes, the social media platforms, username, and most recent communication received using the account(s) are as follows:

☐ Yes ☐ No: I attempted to direct message the other Party via these social media accounts.

☐ Other Effort(s) I made to find the other Party's current address: (describe)

2. The following is a summary of the attempts I made to serve the other Party:

☐ Personal Service: I made the following attempts at personal service of the summons and pleading to personally serve the other Party:

☐ Delivering a copy of the summons and the pleading being served to the Party personally at the following residential address:

☐ Delivering a copy of the summons and the pleading being served to the Party personally at the following employer address:

☐ Leaving a copy of each at the Party's dwelling or usual place of abode with someone of suitable age and discretion who resides there;

☐ Delivering a copy of each to an agent authorized by appointment or by law to receive service for the Party.

☐ Service by Mail or National Courier Service: I attempted to send copies of the pleading and other documents required to be served to the Party's address at:

using

☐ U.S. Mail, requesting restricted delivery and signature of the other Party.

☐ National Courier Service (such as UPS, Fed Ex), requesting restricted delivery and signature of the Party.

☐ Other Attempt(s): (describe)

3. The following is a Summary of the results of the above attempts to serve the other Party.

☐ Personal Service: I made _____ number of attempts at personal service of the summons and pleading and have been unable to personally serve the other Party. This is what happened when personal service was attempted:

☐ The person to be served appears to have intentionally avoided service of process.

☐ Despite reasonably diligent efforts, I have been unable to determine the person's current address and serve the other Party.

☐ Service by Mail or National Courier Service: I made _____ number of attempts at service of the summons and pleading by U.S. Mail and/or National Courier Service and have been unable to serve the other Party. This is what happened when service by U.S. Mail and/or National Courier Service was attempted:

4. Based upon the above reasons and alleged results in this Affidavit,

☐ I request the Court allow me to serve the other Party using the alternative service method(s) listed below:

☐ Mailing to the other Party's last-known address at:

☐ Posting on the door of the other Party's last-known address at:

☐ Emailing documents to the other Party at the following email:

☐ Texting documents to the other Party at the following phone number: _____

Case Number: _____

☐ Direct messaging documents to the other Party on the following social media account:

Social Media Platform: _____

Account: _____

☐ Other alternative service as requested below:

OR

☐ I request the Court allow me to serve the other Party by publication because an alternative means of service is impracticable and publication is the best means practicable for providing the other Party with notice of this action.

OATH OR AFFIRMATION: By signing below, I swear or affirm under penalty of perjury that the contents of this document are true and correct to the best of knowledge and belief.

Signature of Person Sending Documents

Date

STATE OF _____

COUNTY OF _____

Subscribed and sworn to or affirmed before me this: _____ by
(Date)

_____.

(Notarial Officer's Stamp or Seal)

Notarial Officer